

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X
SHAKUR LISBY,

Plaintiff,

SUMMONS

Index No.:

-against-

The Basis of Venue is:
Location of Incident

CITY OF NEW YORK; MIGUEL TORRES; JOHN AND
JANE DOE ONE THROUGH TWENTY

Defendants.

Plaintiff designates BRONX
County as the place of trial.

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To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
June 19, 2020

Yours, etc.



DEVERNA LAW
JOHN PAUL DEVERNA, ESQ.
Attorney for Plaintiff
111 John Street, Suite 1615,
New York, New York 10038
(212) 321-0025

TO: CITY OF NEW YORK, NYC Law Department, 100 Church Street, New York, NY 10007

MIGUEL TORRES, POLICE OFFICER, Shield number unknown, 49th Precinct, 2121
Eastchester Rd, The Bronx, NY 10461

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX----- x
SHAKUR LISBY,

Plaintiff,

-against-

CITY OF NEW YORK; MIGUEL TORRES; JOHN AND
JANE DOE ONE THROUGH TWENTYDefendants.
----- X**INDEX NO.:****VERIFIED COMPLAINT****JURY TRIAL DEMANDED**

Plaintiff, SHAKUR LISBY, by his attorneys, DeVerna Law, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On October 4, 2018, plaintiff was the victim of unlawful entry to his home, during which police officers employed by the defendant deprived Plaintiff of his constitutional rights when the individual defendants unlawfully entered Plaintiff's home and unlawfully searched and seized, questioned, unlawfully imprisoned Plaintiff in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution and in violation of New York State Law.

PARTIES

1. Plaintiff SHAKUR LISBY is a resident of Bronx County, State of New York.
2. Defendant Police Officer MIGUEL TORRES (hereafter, "Defendant TORRES"), Shield number (unknown), is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department, and as such was acting in the capacity of an agent, servant and employee of the City of New York. On the date of the incident, Defendant TORRES was assigned to 49th Precinct. Defendant TORRES is being sued in his individual and official capacities.
3. Defendants John and Jane Doe 1 through 20 were police officers, detectives, undercover police officers, supervisors, policy makers and/or officials employed by the NYPD.

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At this time, Plaintiff does not know the real names and/or shield number of Defendants John and Jane Doe 1 through 10, but such information is believed to be in the possession of the defendants. At all times relevant herein, Defendants John and Jane Doe 1 through 20 were acting as agents, servants and employees of the City of New York and the NYPD. Defendants John and Jane Doe 1 through 20 are sued in their individual and official capacities.

4. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

5. At all times relevant hereto, City of New York, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

6. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

7. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

8. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

9. On or about October 4, 2018, at approximately 4:30 PM, plaintiff SHAKUR LISBY was located in his home apartment inside of 1731 Van Buren Street, Apt. 3, Bronx, New York, 10460.

10. Employees of the City of New York, including but not limited to Defendant Torres and police officer John Doe 1, entered the apartment without permission, a warrant, exigent circumstances, or otherwise legal basis to do so.

11. Defendant officers kicked down his door, yelled, cursed, and threatened Plaintiff and other civilians who were present causing Plaintiff to fear for his personal safety, prompting

him to extricate himself from the situation, run away, and eventually fall causing him personal injury, the extent of which is still currently unknown.

12. Plaintiff's injury was a foreseeable result of Defendant officers unlawful conduct and was the proximate cause of his injuries.

13. An unknown number of Defendant officers occupying five or six police cars that witnessed the unlawful conduct perpetrated upon Plaintiff did not intervene on his behalf.

14. Following the illegal entry into Plaintiff's home, Plaintiff's mother, Shanequa Lisby, also a resident of the home, contacted C.C.R.B. complaining about the unlawful entry (case number #201808579)

15. An investigation was commenced and an Abuse of Authority claim relating to the unlawful entry was substantiated against one of the Defendant Police officers, Miguel Torres.

16. As a result of the injuries inflicted by the defendant police officers on October 4, 2018, Plaintiff suffered physical and emotional injuries that extent of which are still unknown.

17. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable and unlawful deprivation of Plaintiff's constitutional rights.

18. The unlawful stop, question, frisk, search, false arrest, false imprisonment, unlawful seizure, denial of fair trial, and excessive force against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Unlawful Search and Seizure

42 U.S.C. § 1983 Against Individual Defendants

1. The above paragraphs are here incorporated by reference as though fully set forth.

2. Defendants entered Plaintiff's property apartment forcefully, entered the apartment without permission, a warrant, exigent circumstances, or otherwise legal basis to do so.

3. That said warrantless entry constituted a search and seizure of Plaintiff's private property and violated Plaintiff's rights.

4. The police officer defendants while acting in concert and within the scope of their authority, caused plaintiff's home to be unlawfully entered, and the plaintiff to be unlawfully searched and seized, subjected to denial of his due process rights and without probable cause in violation of plaintiff's right to be free of an unreasonable search and seizure and denial of due

process under the Fourth and Fifth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

5. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

6. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

7. By reason of the foregoing, Plaintiff suffered mental injuries, economic injury, deprivation of property, liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.

8. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SECOND CAUSE OF ACTION

Unlawful Stop and Search

42 U.S.C. § 1983 Against Individual Defendants

9. The above paragraphs are here incorporated by reference as though fully set forth.

10. Defendants entered Plaintiff's property apartment forcefully, entered the apartment without permission, a warrant, exigent circumstances, or otherwise legal basis to do so.

11. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped and searched, and subjected to denial of his due process rights and denied the right to a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable stop and seizure and denial of due process under the Fourth and Fifth and Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

12. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

13. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

14. By reason of the foregoing, Plaintiff suffered mental injuries, economic injury, deprivation of property, liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.

15. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

THIRD CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

16. The above paragraphs are here incorporated by reference as though fully set forth.

17. Defendants entered Plaintiff's property apartment forcefully, entered the apartment without permission, a warrant, exigent circumstances, or otherwise legal basis to do so.

18. The acts and conduct of the defendants constitute false arrest and false imprisonment under U.S. Constitution. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement.

19. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally confining, detaining and imprisoning Plaintiff.

20. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

21. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

22. By reason of the foregoing, Plaintiff suffered mental injuries, economic injury, deprivation of property, liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.

23. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FOURTH CAUSE OF ACTION

Failure to Intervene
42 U.S.C. § 1983 Against Individual Defendants

24. The above paragraphs are here incorporated by reference as though fully set forth.

25. Defendants had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

26. Defendants failed to intervene to prevent the unlawful conduct described herein.

27. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

28. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

29. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

30. By reason of the foregoing, Plaintiff suffered mental injuries, economic injury, deprivation of property, liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.

FIFTH CAUSE OF ACTION

Unlawful Entry

42 U.S.C. § 1983 Against Individual Defendants

31. The above paragraphs are here incorporated by reference as though fully set forth.

32. Defendants entered Plaintiff's property apartment forcefully, entered the apartment without permission, a warrant, exigent circumstances, or otherwise legal basis to do so.

33. By unlawfully entering the property of plaintiff, defendants deprived plaintiff of rights, remedies, privileges, and immunities guaranteed to every citizen, in violation of 42 U.S.C. § 1983, including rights guaranteed by the Fourth Amendment.

34. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

35. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

36. By reason of the foregoing, Plaintiff suffered mental injuries, economic injury, deprivation of property, liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.

37. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SIXTH CAUSE OF ACTION

Intentional Infliction of Emotional Distress

38. The above paragraphs are here incorporated by reference as though fully set forth.

39. Defendants entered Plaintiff's property apartment forcefully, entered the apartment without permission, a warrant, exigent circumstances, or otherwise legal basis to do so.

40. By unlawfully and forcibly entering plaintiff's property, and defendant proceeding to draw and aim gun at plaintiff, defendants intentionally and for the purpose of causing severe emotional distress recklessly conducted themselves towards plaintiff in a manner so shocking and outrageous that it exceeded all reasonable bounds of decency resulting in causing plaintiff severe emotional distress.

41. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

42. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

43. By reason of the foregoing, Plaintiff suffered mental injuries, economic injury, deprivation of property, liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.

44. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SEVENTH CAUSE OF ACTION

Municipal Liability

42 U.S.C. § 1983 Against Individual Defendants

45. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

46. Plaintiff failed to properly train, screen, supervise or discipline employees and police officers, and of failed to inform the individual defendants' supervisors of their need to train, screen, supervise or discipline said defendants. The policies, practices, customs, and usages were a direct and proximate cause of the unconstitutional conduct alleged herein.

47. Defendant, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

48. The aforementioned customs, policies, de-facto policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- a) Searching an individual's private property in contravention of property and personal rights; and

49. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiff, were the direct and proximate cause of the constitutional violations suffered by the plaintiff as alleged herein, and were the moving force behind the constitutional violations suffered by the plaintiff as alleged herein.

50. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiff's constitutional rights.

51. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiff's constitutional rights.

52. The acts complained of deprived the plaintiff of his right:

- a) Not to be deprived of his property and liberty without due process of law;
- b) To be free from search and seizure not based upon probable cause; and
- c) Not to have summary punishment imposed upon him

JURY DEMAND

53. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff SHAKUR LISBY demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

DATED: New York, New York
June 5, 2020



DEVERNA LAW
JOHN PAUL DEVERNA, ESQ.
Attorney for Plaintiff
111 John Street, Suite 1615,
New York, New York 10038
(212) 321-0025

TO: CITY OF NEW YORK, NYC Law Department, 100 Church Street, New York, NY 10007

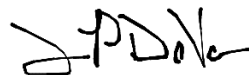
MIGUEL TORRES, POLICE OFFICER, Shield number unknown, 49th Precinct, 2121 Eastchester Rd, The Bronx, NY 10461

ATTORNEY'S VERIFICATION

John Paul DeVerna, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **DeVerna Law**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
June 19, 2020



DEVERNA LAW
JOHN PAUL DEVERNA, ESQ.
Attorney for Plaintiff
111 John Street, Suite 1615,
New York, New York 10038
(212) 321-0025